

25VECV00115 25VECV00115

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-06-29

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CI%2C06%2F29%2F2026

Source SHA-256: 822455958ab8ae4a01c34d40f8e7148974207293f60d486faae9b0bc2b518baf

Case Number: 25VECV00115 Hearing Date: June 29, 2026 Dept: I

25VECV00115 MIRELLA

HERNANDEZ vs VOLKSWAGEN GROUP OF AMERICA, INC., A NEW JERSEY CORPORATION, et al.

June 29, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Motion for
Sanctions

I.

Background

On January

9, 2025, Plaintiff Mirella Hernandez (“Plaintiff”) filed a complaint against Volkswagen Group of America, Inc. (“Volkswagen”), Sherman Oaks-A, Inc. dba Audi Van Nuys (“Audi Van Nuys”), and Does 1 to 10 alleging four causes of action: (1) violation of Song-Beverly Act – breach of express warranty; (2) violation of Song-Beverly Act – breach of implied warranty; (3) violation of the Song-Beverly Act Section 1793.2; and (4) negligent repair.

On May 26, 2026, Plaintiff filed the instant motion to enforce compliance with the Court's March 24, 2026, Discovery Order. Plaintiff also requests sanctions.

On June 15, 2026, Volkswagen filed its opposition.

On June 22,
2026, Plaintiff filed her reply.

II. Legal Standard

Cal. Code of Civ. Proc. § 2023.030
permits the Court, in its discretion, to impose the following types of
terminating sanctions against anyone engaging in conduct that is a “misuse of
the discovery process”:

(1) An order striking out the pleadings or parts of the
pleadings of any party engaging in the misuse of the discovery process.

(2) An order staying further proceedings by that party until
an order for discovery is obeyed.

(3) An order dismissing
the action, or any part of the action, of that party.

(4) An order rendering
a judgment by default against that party.

(CCP § 2023.030(d).)

Conduct that is a “misuse of the
discovery process” includes failing to respond or to submit to an authorized
method of discovery and disobeying a court order to provide discovery. (CCP §
2023.010(d) and (g).) “Imposition of sanctions for misuse of discovery lies
within the trial court’s discretion, and is reviewed only for abuse.” (Doppes
v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 991.) “The trial court
should consider both the conduct being sanctioned and its effect on the party
seeking discovery[.]” (Id. at 992.) Sanctions should be tailored to the
harm created by the withheld discovery and should not be used as punishment. (Ibid.)
The court should also consider whether the discovery misconduct was “willful”
and whether the requesting party was prejudiced by the other’s failure to
comply. (Do It Urself Moving & Storage, Inc. v. Brown, Leifer, Slatkin
& Berns (1992) 7 Cal.App.4th 27, 37.) Courts have held that terminating
sanctions are warranted when a party repeatedly fails to propound adequate discovery

responses, even after the court imposed monetary sanctions. (Liberty Mutual Fire Ins. Co. v. LcL Administrations, Inc. (2008) 163 Cal.App.4th 1093.) For example, in Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, the Court of Appeal held that five motions to compel created a record “replete with evidence of [appellant’s] failures to answer discovery requests.” (Id. at 279–280.)

Additionally, CCP § 2023.030(a) authorizes monetary sanctions for anyone engaging in misuse of the discovery process, including disobeying a court order to provide discovery. (See CCP § 2023.030(a).)

III. Discussion

On March 24, 2026, the Court ordered Defendant to serve Plaintiff with substantive, verified, code-compliant responses, without objections, to Plaintiff’s Form Interrogatories, Set One, Special Interrogatories, Set One, Requests for Admissions, Set One, and Requests for Production of Documents, Set One, within 45 days. (See March 24, 2026, Order.)

On May 8, 2026, Defendant served responses that included objections, thereby failing to comply with the Court’s March 24, 2026, Order. (Hovzen Decl. ¶ 10; Exhs. 2a, 2b, and 2c [responses].) As of the date of this motion, Defendant still had not complied with the Court’s March 24, 2026, Discovery Order. (Id. at ¶ 13.)

In opposition, Defendant argues that it has “already produced all confidential and non-confidential documents in its possession, including confidential policy / procedure and OSI documents, and further supplemental responses to Plaintiff’s [discovery requests] . . .” (Opposition at 2:3-10.) Defendant also argues that it “realized that [Defendant] inadvertently left objections in [its] May 8, 2026 Supplemental Responses . . . On May 26, 2026, [Defendant] served Further Supplemental Responses to Plaintiff’s [discovery requests] without any objections in compliance with the Court’s order . . .” (Id. at 18-26 [citing Fletcher Decl. at ¶ 4; Exh. B [responses]].)

The Court finds that Defendant has substantially complied with its March 24, 2026, Order. Any further deficiencies

identified by Plaintiff may be addressed through a motion to compel further responses.

Notwithstanding the foregoing, Defendant only served its objection-free responses after this motion was filed. Accordingly, for the cost incurred with bringing this motion, the Court awards Plaintiff sanctions in the amount of \$500.

IV.

Conclusion

Based on the foregoing, Plaintiff's motion is GRANTED in part and DENIED in part.

The Court finds that Defendant has substantially complied with its March 24, 2026, Discovery Order. Therefore, Plaintiff's request for terminating sanctions is denied.

However, for the cost incurred in bringing this motion, Defendant and its counsel, jointly and severally, are to pay Plaintiff's counsel sanctions in the amount of \$500 within 20 days of this order.

Moving party to give notice.